

Supreme Court of the State of New York
Appellate Division, First Judicial Department

Present – Hon. Tanya R. Kennedy,
Saliann Scarpulla
Martin Shulman
Bahaati E. Pitt-Burke
Shlomo S. Hagler,

Justice Presiding,

Justices.

The People of the State of New York,
Respondent,

Motion No. 2026-00237

Ind. No. 1592/14

Case No. 2017-02703

-against-

Maximo Almonte,
Defendant-Appellant.

An order of this Court having been entered on June 28, 2018 (M-2233), inter alia, assigning Seymour James, Esq., as predecessor to Twyla Carter, Esq., The Legal Aid Society, 199 Water Street, 5th Floor, New York, New York 10038, Telephone No. 212-577-3688 as counsel to prosecute defendant's appeal from a judgment of the Supreme Court, Bronx County, rendered on March 09, 2017,

And counsel having moved for an order abating the appeal by reason of appellant's death, remanding the matter to the trial court to vacate the judgment of conviction, and dismissing the indictment,

Now, upon reading and filing the papers with respect to the motion, and due deliberation having been had thereon,

It is ordered that the motion is granted to the extent of dismissing the appeal due to appellant's death on October 11, 2023, and remanding the matter to the Supreme Court, Bronx County, for further proceedings consistent with *People v Mintz* (20 NY2d 770).

ENTERED: March 05, 2026



Susanna Molina Rojas
Clerk of the Court